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No. U6-30380/2002
POLICE HEADQUARTERS,
KERALA, THIRUVANANTHAPURAM.
DATED 28.11.2002.

CONDITIONS FOR ISSUE OF LOUDSPEAKER LICENCE

NOTIFICATION

Whereas in view of the issuance of the Noise Pollution (Regulation and Control) Rules, 2000 under the Environment (Protection) Act, 1986 by the Government of India and in accordance with the regulatory functions under sections 19 and 20 of the Kerala Police Act, 1960, it has become necessary to revise the conditions for granting licences for use of loudspeakers, in exercise of the powers conferred under section 16 of the Kerala Police Act, the following regulations regarding grant of licences for use of loudspeakers are issued.

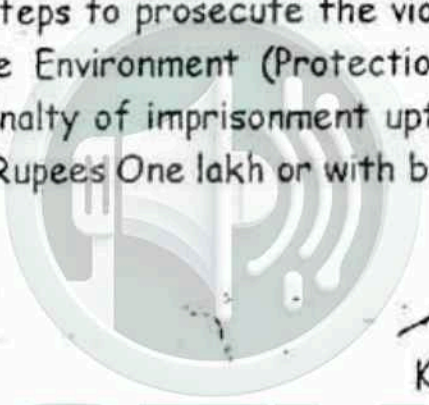
1. The competent authority in the Police Department for issue of licence for use of loudspeaker will be the Sub Divisional Police Officer or the Superintendent of Police / Commissioner of Police having local jurisdiction.
2. Application for licence will be submitted to the competent authority, 7 days in advance.
3. Fees as prescribed by the Govt from time to time will be levied from the applicants.
4. The application for use of loudspeaker should be specific with regard to the date, place, time and purpose for which it has been sought.
5. License will be issued in the form prescribed for the purpose, mentioning various conditions attached. General permit will not be issued as it amounts to violation of the provisions of Noise Pollution (Regulation and Control) Rules, 2000.

6. Use of loudspeaker between 10 PM and 6 AM is prohibited except in closed premises like auditoria, conference rooms, community halls and banquet halls for communication within as defined in Rule 5 of the Noise Pollution (Regulation and Control) Rules.
7. Licence for use of loudspeakers will be issued taking into account the zone as notified by the Government of Kerala vide SRO No. 289/2002 and the permissible ambient air quality standards prescribed for each zone as follows:

Area Code	Category of Area / Zone	Level of sound in decibels	
		Day Time	Night Time
(A)	Industrial Area	75	70
(B)	Commercial Area	65	55
(C)	Residential Area	55	45

8. No licence shall be issued for use of loudspeakers within the silence zone (area comprising 100 metres around hospitals, educational institutions, courts, religious places, reserve forests and wildlife sanctuaries).
9. No licence shall be issued for use of loudspeaker within 100 metres around public offices.
10. Use of loudspeaker on a vehicle in motion is prohibited.
11. No loudspeaker will be allowed to be used on public roads or near busy junctions which is likely to cause public nuisance and hindrance to the smooth flow of traffic.
12. Loudspeakers will not be installed beyond 300 metres from the location of the mike and amplifier.
13. Licence will be issued only for box type loudspeakers, each box containing not more than two speakers.
14. The number of such boxes which can be fitted to a vehicle will be limited to two.

15. Licences for use of loudspeakers in other than vehicles v. specify the number of boxes allowed to be installed.
16. (a) Licencee shall stop the operation of loudspeaker at the direction of a police officer not below the rank of a Sub Inspector of Police on grounds of public nuisance or in the interest of maintenance of law and order.
- (b) A licensee violating the conditions of the licence and / or failing to comply with the direction of a police officer not below the rank of SI of Police shall be dealt with under the provisions of KP Act, 1960.
- (c) The competent authority (SDPO / SP / CP) may, where necessary, take steps to prosecute the violators as provided in section 15 of the Environment (Protection) Act, 1986 (which provides for a penalty of imprisonment upto five years or with maximum fine of Rupees One lakh or with both).



[Signature]
K J JOSEPH

Director General of Police.

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Section Officer